

24STCV22842 24STCV22842

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 24STCV22842 Hearing Date: September 10, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 10, 2026

Case Name: Chen v. Calderon, et al.

Case No.: 24STCV22842

Matter: Motion for Terminating Sanctions

Moving Party: Defendant Diana Calderon

Responding Party: Unopposed

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On March 11, 2026, the Court granted the motions to compel initial responses of Defendant Diana Calderon with respect to her form and special interrogatories from Plaintiff Victor Chen.

Defendant Calderon now seeks terminating sanctions against Plaintiff Victor Chen for his failure to comply with the Court's discovery order.

"California discovery law authorizes a range of penalties for conduct amounting to 'misuse of the discovery process.' " (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) Misuses of the discovery process include "[u]sing a discovery method in a manner that does not comply with its specified procedures" (Code Civ. Proc. § 2023.010(b)); "[f]ailing to respond or to submit to an authorized method of discovery" (id., subd. (d)); "[m]aking an evasive response to discovery" (id., subd. (f)); and "[d]isobeying a court order to provide discovery" (id., subd. (g).)

Code Civ. Proc. § 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against "anyone engaging in conduct that is a misuse of the discovery process." In selecting the appropriate sanction, a trial court "should consider both the conduct being sanctioned and its effect on the party seeking discovery," and should tailor the sanction to fit the harm caused by the abuse of the discovery process. (Doppes, supra, 174 Cal.App.4th at p. 992.) "The trial court cannot impose sanctions for misuse of the discovery process as a punishment." (Ibid.)

A terminating sanction "is a proper sanction to punish the failure to comply with a rule or an order only if the court's authority cannot be vindicated through the imposition of a less severe alternative." (Rail Services of America v. State Comp. Ins. Fund (2003) 110 Cal.App.4th 323, 331 [concerning dismissal for a plaintiffs' refusal to comply with discovery]; see also Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-80 ["[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction."].)

As the Motion is unopposed, it appears Plaintiff does not wish to participate in the discovery process. Therefore, the Court enters a terminating sanction against Plaintiff Victor Chen. The Complaint is stricken and dismissed. No further sanctions.

Moving party to give notice.